

Policy Title: State Board of Land Commissioners

Policy Number: Part 7, Planning and Land Use; Chapter 5, Miscellaneous ; Section 7

Type of Policy: Administrative

Adopting Resolution: CC07-252

References: October 15, 1984 Memorandum of Understanding; Article IX, Sections 9 and 10 of the Colorado Constitution; Articles 1 through 6 of Title 36 Colorado Revised Statutes; Article 28 of Title 30 C.R.S; Resolution CC84-974

Effective Date: May 8, 2007

Adoption Date: May 8, 2007

Administrative Revision Date: Not applicable

Policy Custodian: Planning and Zoning Division

Purpose: To recognize the October 15, 1984 Memorandum of Understanding between the State Board of Land Commissioners and the Board of County Commissioners.

A. Memorandum of Understanding

1. On October 15, 1984, Jefferson County entered into a Memorandum of Understanding with the State Board of Land Commissioners.
2. In accordance with this understanding, Jefferson County, within its jurisdictional powers, shall:
 - a. work to dispel any misconception or misunderstanding with respect to mutually reconcilable requirements and provisions of law; and
 - b. recognize the obligation of political subdivisions to protect the interests of the state trusts in the exercise of zoning decisions; and
 - c. work with the Board of Land Commissioners on the planning or designating land use of those lands under the control of the Board of Land Commissioners prior to the adoption of any master plan; and
 - d. take into account the fact that the Board of Land Commissioners is obliged under law to maximize its return on all trust parcels.
3. In accordance with this understanding, the State Board of Land Commissioners, within its jurisdictional powers, shall:

- a. work to dispel any misconception or misunderstanding with respect to mutually reconcilable requirements and provisions of law; and
- b. include in its leases provisions directing lessees of parcels of state land, as to which land use changes are contemplated, to use such parcels in ways that will comply with all local land use control, including master plans, zoning and subdivision regulations and building codes.